

STATE OF NEW YORK

5049--A

Cal. No. 299

2025-2026 Regular Sessions

IN SENATE

February 18, 2025

Introduced by Sens. BAILEY, HELMING -- read twice and ordered printed, and when printed to be committed to the Committee on Insurance -- recommitted to the Committee on Insurance in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the insurance law, in relation to licensing of independent adjusters

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraph 1 of subsection (f) of section 2108 of the insurance law is amended to read as follows:

(1) The superintendent shall, in order to determine the trustworthiness and competency to act as an independent adjuster of each individual applicant for such license, and of each proposed sub-licensee, except in the case of a renewal license, require every such individual to take and pass, to the satisfaction of the superintendent, a personal written examination. The superintendent may prescribe the types of written examinations according to the kind or kinds of insurance claims ~~[which]~~ that the applicant is to be licensed to investigate and adjust. *The exam requirement shall be deemed met for individuals holding a claims certification issued by a national or state-based claims association with a certification program that consists of at least forty hours of pre-exam coursework, a proctored exam of sufficient length to adequately determine the competency of the individual, and twenty-four hours of continuing education required for certification renewals on a biennial basis, subject to the approval of the superintendent.*

§ 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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